

ORIGINAL

FEDERAL MARITIME COMMISSION

YAKOV KOBEL and VICTOR BERKOVICH,

Complainants,

v.

HAPAG-LLOYD AMERICA, INC., LIMCO
LOGISTICS, INC., and INTERNATIONAL
TLC, INC.,

Respondents.

Docket No. 10-06

COVENANT NOT TO EXECUTE
AND RELEASE OF CLAIMS

Public Version (Redacted portions)

WHEREAS, Yakov Kobel and Victor Berkovich, Complainants (and releasors herein) brought an action against Hapag-Lloyd, Limco Logistics, Inc. and International TLC under the Shipping Act for the Federal Maritime Commission (FMC) in Docket 10-06; and

WHEREAS, The FMC awarded Complainants an award of reparations of \$129,035.29 against Limco Logistics (Limco) and International TLC (ITLC) jointly and severally; and

WHEREAS, Complainants/releasors agree to settle their claim for reparations, attorney's fees and other claims arising out of the above proceeding against Limco only (hereinafter referred to as releasee), pursuant to the settlement agreement filed by Complainants and Limco with the FMC in the above case;

NOW THEREFORE, Complainants Victor Berkovich and Yakov Kobel, (releasors) for and in consideration REDACTED

on behalf of Limco, their officers, directors, attorneys, representatives, employees, successors and assigns (releasees) pursuant to a schedule set forth herein and in the settlement agreement filed in Docket No. 10-06, Limco agrees not to appeal the FMC's decision in Docket 10-06; Complainants/releasors agree to partially satisfy and discharge their award as to only Limco, their successors and assigns (releasee) from the reparations award in the above captioned case and agree not to execute or enforce the balance owed on the award as to only Limco its successor and assigns herein (releasee).

1 Payment of the aforementioned funds shall be paid to the trust account of Donald P.
2 Roach, counsel for Complainants, under the schedule set forth in the settlement agreement
3 filed with the FMC, namely, REDACTED as follows:

- 4 1. Limco agrees to pay to Complainants the total of REDACTED
- 5 2.

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7 REDACTED
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18 This covenant not to execute and release includes, but is not limited to, all claims for
19 attorney's fees by Complainants and any other claims arising out of or related to the
20 transportation and handling of the cargo by Limco Logistics or claims that could have been
21 raised against Limco of whatever nature in the above captioned shipping case, Docket no. 10-
22 06, which release against the releasee, its representatives, successors and assigns from any
23 other damages except for the reparation award which is partially satisfied as to Limco only
24 with a covenant not to execute on the remainder of that award as to Limco only.

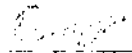
25 This release does not in any way release ITLC from any liability or obligation under
26 the reparations award or any claim for attorney's fees arising out of the above entitled

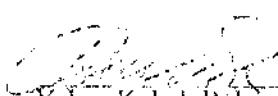
1 proceedings. Complainants expressly do not release ITLC from such liability for damages or
2 reparation or attorney fees.

3 In further consideration of such payment, releasors hereby represent and warrant to
4 releasee that they are the sole owners of the cargo in question and agree to indemnify and hold
5 harmless each of them against any and all claims asserted by any other party who claims to be
6 an owner of the subject equipment, and from all damages costs and expenses, including, but
7 not limited to, attorney's fees which may be incurred by reason thereof.

8 It is further acknowledged by the undersigned releasors that they have read the release
9 and know and understand the full contents and affect of it and that they fully and knowingly
10 contract with releasees to release them from the above claims and damages and agree to grant
11 a covenant not to execute on the remaining amount of the reparation award pursuant to this
12 agreement and the settlement agreement filed in the Federal Maritime case.

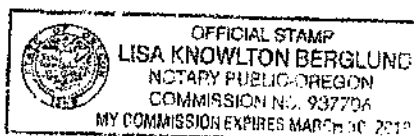
13 IN WITNESS WHEREOF the Complainants/releasors intend to be legally bound and
14 herein release releasees this 21 day of March, 2017.

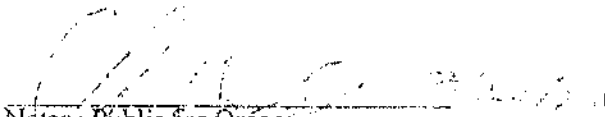
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17 Victor Berkovich, Releasor/Complainant

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19 Yakov Kobel, Releasor/Complainant

20 STATE OF OREGON)
21 County of Multnomah)ss

22 Personally appeared before me, Victor Berkovich who swore an oath that he read the
23 foregoing and the same is true and correct to the best of his knowledge.

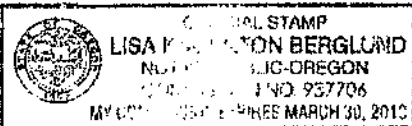



Notary Public for Oregon

1 STATE OF OREGON)

2)ss
3 County of Multnomah)

4 Personally appeared before me, Yakov Kobel who swore an oath that he read the
5 foregoing and the same is true and correct to the best of his knowledge..



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Notary Public for Oregon

Approved as to form:

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Donald P. Roach, OSB 75317
Attorney for Complainants

Date: March 29, 2017

Jonathan Cooper
Attorney for Respondent Limco Logistics

Date: 3/31/17

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Docket No. 10-06

CERTIFICATE OF MAILING

I mailed true and correct copies of the foregoing REDACTED COVENANT NOT TO EXECUTE AND RELEASE to the following addresses via email and first class mail as follows:

Limco Logistics, Inc. on September 1, 2017 and International TLC on September 1, 2017 at the following addresses:

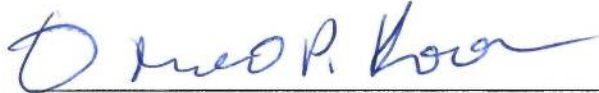
International TLC
Alena Tokar
500 Valley Ave. NE
Puyallup WA 98372
Email: www.itlclogistics.com

Jonathan S. Cooper, Esquire
Blanck Cooper & Hernandez, P.A.
5730 S.W. 74th Street, Suite #700
Miami FL 33143
Email: jcooper@shiplawusa.com

Alexander Barvinenko
International TLC, Inc.
500 Valley Ave., NE
Puyallup WA 98372
info@itlclogistics.com

Dated this 1st day of September, 2017

Respectfully submitted:



Donald P. Roach, OSB 75317
Attorney for Complainants
FAX: 503-228-8676
Email: donroachlaw@yahoo.com